

# STATE OF NEW YORK

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1280--A

2025-2026 Regular Sessions

## IN SENATE

January 9, 2025

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Introduced by Sens. KRUEGER, BASKIN, BROUK, CLEARE, COMRIE, COONEY, FAHY, GIANARIS, GONZALEZ, HARCKHAM, HOYLMAN-SIGAL, JACKSON, KAVANAGH, MAY, MYRIE, PARKER, RAMOS, RIVERA, SALAZAR, SANDERS, SEPULVEDA, SERRANO, STAVISKY, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to labeling requirements for gas stoves

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as  
2 the "Healthy Homes Right To Know Act".

3 § 2. Legislative findings. The legislature finds and declares that:

4 1. New York has a long history of protecting its citizens by making  
5 sure they have adequate knowledge to make informed purchasing decisions.

6 2. The public is broadly unaware of the health dangers posed by gas  
7 stoves. On May 8, 2023, ten state attorneys general, including the  
8 attorney general of New York State as well as the New York City Corpo-  
9 ration Counsel, sent a letter to the Consumer Product Safety Commission  
10 (CPSC), in which they asserted, "Most of the research and evidence on  
11 the health risks associated with elevated levels of emissions from gas  
12 appliances has been circulated among decisionmakers and engaged stake-  
13 holders. This has left the public to try to piece together health and  
14 safety information--which can be false or misleading--from the internet,  
15 social media, and other non-authoritative sources. Thus, when it comes  
16 to gas stove emissions, consumers are presently unprotected against, and  
17 inadequately informed about, the health hazards these appliances pose."  
18 Those dangers may now be particularly acute as, according to the U.S.  
19 Environmental Protection Agency, "Americans on average, spend approxi-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 mately 90% of their time indoors where concentrations of some pollutants  
2 are often 2 to 5 times higher than typical outdoor concentrations."

3 3. The same letter suggests, "requiring warning labels on gas stoves  
4 that provide more information on their health risks". The letter goes on  
5 to say, "Proper labeling on gas stoves would represent an important step  
6 in helping to educate consumers about the health risks associated with  
7 gas stoves. Providing this information upfront is essential to enabling  
8 consumers to make a fully informed decision."

9 4. Current New York state regulations regarding unvented gas appli-  
10 ances are inconsistent. Since there is no statewide requirement that gas  
11 stoves be ventilated to the outdoors, a precautionary approach to public  
12 safety requires that these appliances be treated as unvented.

13 5. Although the research regarding the impacts of unvented gas heaters  
14 is vastly less robust than that regarding gas stoves, the New York State  
15 Department of Health nonetheless adopted regulations in January of 2023  
16 to require labeling of unvented gas heaters including, "WARNING: This  
17 appliance produces CARBON MONOXIDE, a poisonous gas. You MUST use carbon  
18 monoxide alarms to avoid injury or death". Labeling requirements for  
19 unvented heaters in California also include warnings of exposure to:  
20 "...chemicals including benzene, which is known to the state of Califor-  
21 nia to cause cancer and cause birth defects or other reproductive harm".

22 6. Given that the research regarding gas stoves is even more complete  
23 and compelling, New York State should also act to inform the public as  
24 has already been done with unvented gas heaters.

25 7. The scientific consensus on gas stove emissions is robust and grow-  
26 ing. It is now understood that gas stoves can emit carbon monoxide  
27 (CO), nitrogen dioxide (NO<sub>2</sub>), benzene, and formaldehyde. Methane emis-  
28 sions can occur even when the gas stove is turned off. According to the  
29 Concerned Health Professionals of New York and the Physicians for Social  
30 Responsibility, "Nearly three-quarters of methane emissions from gas  
31 stoves take place while the stove is turned off and not in use. At the  
32 same time levels of hazardous air pollutants from everyday use of gas  
33 stoves often exceed the limits of outdoor air quality standards. Indoor  
34 concentrations are often much higher than health-protective guidelines  
35 set by the World Health Organization."

36 8. According to the Centers for Disease Control and Prevention,  
37 "Carbon monoxide, or "CO," is an odorless, colorless gas that can kill  
38 you". The New York State Department of Health refers to carbon monoxide  
39 as a poisonous gas. Approximately 430 people die each year from carbon  
40 monoxide exposure. Thousands more become ill and seek medical attention.  
41 Carbon monoxide poisoning is estimated to cause more than 50,000 emer-  
42 gency room visits in the United States each year. According to the New  
43 York State Department of Health, annually, "In New York State, about 200  
44 people are hospitalized and over 1800 people visit an emergency depart-  
45 ment because of accidental CO poisoning." The numbers of accidental  
46 poisonings are on the rise. The U.S. Consumer Product Safety Commission  
47 "found evidence of a statistically significant upward trend in non-fire  
48 CO deaths for the 11-year period from 2009 to 2019". According to  
49 Preventative Medicine reports, "Accidental, non-fire related poisoning  
50 accounts for over \$1.3 billion annually in societal costs."

51 9. Notably, while carbon monoxide alarms are an important preventative  
52 measure to lower the risk of carbon monoxide poisoning, they are not  
53 guaranteed to be effective. According to the National Carbon Monoxide  
54 Awareness Association: "Only 14% of families in the US have a properly  
55 functioning carbon monoxide alarm". An earlier report showed that in

1 2009, 83% of NYC residents reported having CO alarms. However, only 54%  
2 of them had recently tested or replaced their batteries.

3 10. Nitrogen dioxide, or NO<sub>2</sub>, is a gaseous air pollutant composed of  
4 nitrogen and oxygen and is formed when fossil fuels are burned. The EPA  
5 has determined that NO<sub>2</sub> is "causal" of more severe respiratory symptoms  
6 in people with asthma and that long-term exposure to NO<sub>2</sub> is "likely  
7 causal" of respiratory illnesses such as asthma. The New England Journal  
8 of Medicine has found that, "Gas combustion in stoves, boilers and  
9 furnaces generates oxides of nitrogen," to which the article attributes,  
10 "Increased asthma risk; exacerbation of COPD and cardiovascular  
11 disease". The EPA includes NO<sub>2</sub> on its list of asthma triggers, and  
12 "unvented combustion appliances, e.g. gas stoves" is first on its list  
13 of "primary sources of NO<sub>2</sub> indoors".

14 11. Each year, asthma accounts for more than 439,000 hospitalizations,  
15 1.6 million emergency department visits, and 10.5 million physician  
16 office visits in the United States. About 10 people die from the disease  
17 every day. Asthma has been linked to 13.8 million missed school days and  
18 14.2 million missed workdays annually. The cost of treating asthma in  
19 the United States is \$62.8 billion every year.

20 12. A 2013 meta-analysis of 41 studies found that children living in  
21 homes with gas stoves had a 42 percent higher risk of experiencing asth-  
22 ma symptoms, and, over their lifetime, a 24 percent increase in the risk  
23 of being diagnosed with asthma, and a 2022 peer-reviewed research paper  
24 published in the International Journal of Environmental Research and  
25 Public Health found that more than 12% of current childhood asthma cases  
26 in the US can be attributed to gas stove use. The same paper suggests  
27 that attribution number is 18.8% of children with asthma in New York  
28 State.

29 13. The asthma crisis does not equally affect all New York communi-  
30 ties. Black Americans are approximately two times more likely to die of  
31 asthma than White Americans. Further, the percentage of Black children  
32 in the U.S. suffering from asthma is nearly twice that of White chil-  
33 dren, and their death rate is ten times higher. According to a 2023  
34 joint report from the New York State Department of Health and the New  
35 York City Department of Health and Mental Hygiene, "The burden of asthma  
36 falls disproportionately among specific demographic groups, specifically  
37 for persons and communities of color, where asthma prevalence is higher  
38 among Black, American Indian, and multiracial New Yorkers." The Centers  
39 for Disease Control and Prevention concurs with the assessment of  
40 disproportionate burden.

41 14. While the age-adjusted asthma mortality rate for New York City is  
42 higher than for New York State as a whole, with the Bronx demonstrating  
43 a notably higher mortality rate than the other boroughs, this problem  
44 should not be construed as a New York City issue. Other hotspots exist  
45 around the state. For example, years of academic research has convinc-  
46 ingly demonstrated alarmingly high rates of asthma on Buffalo's West  
47 Side. A study by Dr. Lwebuga-Mukasa, Professor of Medicine at the  
48 University of Buffalo, found that "nearly 45% of West Side households  
49 reported at least one case of chronic respiratory illness or asthma".

50 15. Gas and propane combustion from gas stoves emits benzene. A study  
51 from the Stanford Woods Institute for the Environment found that a  
52 single gas cooktop burner set on high, or an oven set at 350 degrees  
53 Fahrenheit can, "raise indoor levels of the carcinogen benzene above  
54 those of secondhand smoke". According to the World Health Organization,  
55 "Human exposure to benzene has been associated with a range of acute and

1 long-term adverse health effects and diseases, including cancer and  
2 haematological effects."

3 16. Formaldehyde is listed as a human carcinogen and has been found at  
4 more elevated levels associated with gas burners set to "simmer".

5 17. Ventilation of gas stove emissions to the outdoors can improve  
6 indoor air quality. However, many homeowners do not have ventilation,  
7 and it is not required by state law. In addition, studies also show that  
8 many people who have ventilation systems don't use them, often because  
9 of noise concerns. Vents can become blocked with debris and the effec-  
10 tiveness of ventilation systems can be compromised by changes in air  
11 pressure in the building envelope caused by the opening of windows or  
12 doors or the activation of bathroom fans, for example. Lastly, some  
13 people with range hoods may be under the mistaken belief that pollutants  
14 are being vented outdoors when in fact many hoods simply recirculate the  
15 air into the kitchen after filtering it. The effectiveness of filtration  
16 varies widely and is partially based on active maintenance of the  
17 filtration system.

18 18. Therefore it is the intent of the legislature to promote public  
19 health, support informed consumer choice, and create consistent public  
20 policy, by requiring labeling and signage regarding the health impacts  
21 of gas stoves.

22 § 3. The general business law is amended by adding a new section 322-d  
23 to read as follows:

24 § 322-d. Labeling requirements for gas stoves. 1. For the purposes of  
25 this section, "gas stove" means a stove or range that utilizes natural  
26 gas or propane and is used for indoor food preparation, whether in a  
27 commercial or residential setting, and provides at least one of the  
28 following functions:

29 (a) surface cooking;

30 (b) oven cooking; or

31 (c) broiling.

32 2. No person, firm, partnership, association, or corporation shall  
33 manufacture, distribute, assemble, sell or offer for sale any new gas  
34 stove unless the following requirements are met:

35 (a) A removable label is affixed to the gas stove, and a label is  
36 either affixed to or printed on the package in which it is contained, if  
37 applicable. Such label shall contain the following message:

38 "WARNING: Gas stoves can emit health harming pollutants (such as  
39 NITROGEN DIOXIDE, CARBON MONOXIDE, BENZENE, and FORMALDEHYDE) at  
40 potentially unsafe levels inside homes. The presence of these pollu-  
41 tants can affect your health and may exacerbate or contribute to the  
42 development of respiratory illnesses. Properly installed and operating  
43 ventilation to the outdoors can reduce but not eliminate emissions."

44 (b) Such removable label shall be in a type size no smaller than the  
45 largest type size used for other consumer information on the gas stove  
46 or package, and shall be in an easily viewable and accessible location  
47 on the gas stove or package.

48 3. The department of state shall adopt regulations regarding the  
49 placement and format of such removable labels outlined in subdivision  
50 two of this section.

51 4. The department of state shall make available on its website a model  
52 removable label, outlined in subdivision two of this section that can be  
53 used to comply with the provisions of this section.

54 5. Any person who violates any provision of this section shall receive  
55 a warning notice for the first such violation. A person shall be liable  
56 to the state of New York for a civil penalty not to exceed two hundred

1 fifty dollars for the second violation and not to exceed one thousand  
2 dollars for any subsequent violation. A hearing or opportunity to be  
3 heard shall be provided prior to the assessment of any civil penalty.

4 6. The department of state and the office of the attorney general are  
5 authorized to enforce the provisions of this section.

6 § 4. This act shall take effect one year after it shall have become a  
7 law.